



SUMMARY REPORT

Agenda Date: 5/14/2019

To: Board of Supervisors of Sonoma County
Department or Agency Name(s): Sheriff's Office
Staff Name and Phone Number: Melissa MacDonald, 565-3922
Vote Requirement: Majority
Supervisory District(s): All Supervisory Districts

Title:

Agreement for Forensic Pathology Services

Recommended Actions:

Authorize the Sheriff-Coroner to execute an Agreement for forensic pathology services with Kimi Verilhac, P.C., from May 15, 2019 through June 30, 2022, for an estimated annual cost of \$37,555 and an estimated total cost of \$1,700,000.

Executive Summary:

The two vendors providing forensic pathology services to the Sheriff's Office recently and unexpectedly went out of business, leaving the Sheriff's Office with a critical need to find a provider of these services. The Sheriff's Office intends to execute a contract with Kimi Verilhac, P.C. as a primary provider of forensic pathology services in order to ensure the continuation of timely quality pathology services to Sonoma County citizens.

Discussion:

The Sheriff-Coroner is responsible for performing investigations to determine cause of death on certain deceased persons in Sonoma County, which includes providing forensic pathology services. A forensic pathologist conducts postmortem examinations, or autopsies, which may include x-rays, microscopic exams, toxicological analysis of tissue samples, and cultures of body fluids and organs for evidence of infection. The forensic pathologist also conducts on-scene examinations and postmortem examinations of sudden infant death syndrome cases (SIDS). The Sheriff's Office has been contracting these specialized, professional services out since the Sheriff became the Sheriff-Coroner in 1974.

The Sheriff's Office has maintained multiple forensic pathology service agreements in recent years in order to ensure adequate coverage, given the chronic low supply of forensic pathologists across the US. During FY 16-17, the Sheriff's Office issued an RFP for forensic pathology services. Only two responses were received, one from Regional Pathology and Autopsy Services, Inc. (RPAS), and the other from Forensic Medical Group (FMG). The Sheriff's Office executed contracts with both vendors through June of 2022, using RPAS as the primary provider and FMG as a backup provider.

In July 2018, FMG notified the Sheriff's Office that they would no longer be operating and they terminated their Agreement as of September 2018. At that time, the Sheriff's Office was able to secure a contract with Dr. Arnold Josselson, formerly of FMG, as an independent contractor providing backup pathology services. In late

March 2019, RPAS notified the Sheriff's Office that they, too, would be closing their doors and no longer able to provide forensic pathology services. RPAS stopped providing services as of April 5, 2019. With the approval of County Purchasing and County Counsel, on April 8, 2019 the Sheriff's Office was able to execute a short-term contract with Kimi Verilhac, P.C., the pathologist assigned to the Sheriff's Office under RPAS, in order to secure the immediate need for pathology services until the Board could authorize a longer-term contract. The Sheriff's Office is now asking the Board to authorize the Sheriff-Coroner to execute a longer-term contract to continue services through June 2022, the original term of the contracts issued as a result of the RFP.

Dr. Verilhac is a highly sought after, board certified pathologist, and the Sheriff's Office has been extremely satisfied with the services she provided under RPAS. County Purchasing approved a single source waiver for Dr. Verilhac's services in the short term, and has encouraged an RFP process in order to procure long-term services. The Sheriff's Office has done its due diligence in searching for providers, and continues to look for additional qualified providers in the area. Dr. Josselson continues to provide forensic pathology services to the Sheriff's Office, though his availability is limited and he can only provide backup services. Given the shortage of available providers nationwide and the critical nature of the services, the Sheriff's Office plans to issue an RFP at the end of the contract term in 2022.

Prior Board Actions:

The Board approved both agreements with Regional Pathology and Autopsy Services, Inc. and Forensic Medical Group in May 2017.

FISCAL SUMMARY

Expenditures	FY 18-19 Adopted	FY19-20 Projected	FY 20-21 Projected
Budgeted Expenses	\$66,258	\$530,061	\$545,049
Additional Appropriation Requested			
Total Expenditures	\$66,258	\$530,061	\$545,049
Funding Sources			
General Fund/WA GF	\$66,258	\$530,061	\$545,049
State/Federal			
Fees/Other			
Use of Fund Balance			
Contingencies			
Total Sources	\$66,258	\$530,061	\$545,049

Narrative Explanation of Fiscal Impacts:

The FY 18-19 Sheriff's Office adopted budget includes \$66,258 for autopsy and related medical services from 5/20/2019 through 6/30/2019. The FY 19-20 Sheriff's Office recommended budget includes \$530,061 for autopsy and related medical services. Projected expenses for FY 20-21 are \$545,049.

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Staffing Impacts:

Position Title (Payroll)	Monthly Salary Range (A - I Step)	Additions (number)	Deletions (number)

Narrative Explanation of Staffing Impacts (If Required):

N/A

Attachments:

Agreement for Forensic Pathology Services with Kimi Verilhac, P.C.

Related Items "On File" with the Clerk of the Board:

N/A